

# PROJECT MANAGEMENT AGREEMENT

This Agreement is made this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_

## BETWEEN

1402 CELSIUS LTD

20-22 Wenlock Road

N1 7GU, London

United Kingdom

Company Registration No: 12475013

VAT No: GB 343 1702 32

(hereinafter referred to as the "Service Provider")

## AND

[CLIENT NAME]

Address: [CLIENT ADDRESS]

[CLIENT CITY, POSTAL CODE, COUNTRY]

(hereinafter referred to as the "Client")

## RECITALS

WHEREAS:

A. The Client wishes to explore and execute a real estate investment in [Region], Italy, and requires professional project coordination and representation services to support this endeavour;

B. The Service Provider acts as a Project Coordinator and Client Representative, responsible for managing and coordinating all third-party professionals, ensuring their deliverables are completed on time and according to the project plan agreed with the Client (the "Project Owner");

C. The Service Provider, through its authorized representatives and associates, possesses the necessary qualifications, experience, and local expertise to coordinate, manage, and oversee all professional services required for the project;

D. The Service Provider undertakes responsibility for the performance management of all engaged professionals, while the actual technical services are performed by qualified third-party specialists;

E. The parties wish to enter into this professional services agreement under the terms and conditions set forth below;

NOW THEREFORE, in consideration of the mutual covenants and agreements hereinafter set forth, the parties agree as follows:

# ARTICLE 1 - SCOPE OF SERVICES

## 1.0 Nature of Services

The Service Provider acts exclusively as a Project Coordinator and Client Representative, responsible for:

- Coordinating and managing all third-party professionals engaged in the project
- Representing the Client's interests in all project-related matters
- Ensuring timely delivery of all professional services according to the agreed project plan
- Monitoring and reporting on the performance of all engaged professionals
- Acting as the single point of contact between the Client and all project stakeholders

Important Note: The Service Provider does not directly perform technical services (architectural, engineering, construction, legal, or financial advisory) but ensures these services are delivered by qualified professionals according to the Client's requirements and timeline.

The Service Provider is engaged to provide comprehensive coordination and management services for the Client's property investment project in [Region], Italy. The services shall include but not be limited to:

## 1.1 Confidentiality and Data Protection

The Service Provider agrees to:

- Maintain strict confidentiality over all information shared by the Client, including property details, business models, strategies, financial information, and related materials
- Comply with UK GDPR and data protection regulations
- Not disclose or use confidential information for any purpose other than serving the Client's interests
- Return or destroy all confidential materials upon project completion or termination

## 1.2 Entity Setup and Legal Framework - Coordination Services

- Coordination of legal professionals for establishing an Italian SRL or appropriate legal entity
- Management of the process for obtaining SPID and digital signatures through authorized providers
- Oversight of local registrations, tax codes, and legal compliance through qualified professionals
- Scheduling and coordination with Italian notaries and legal professionals
- Ensuring all legal documentation is properly prepared and delivered on schedule

## 1.3 Property Assessment and Strategic Planning - Representation Services

- Representing the Client in property viewings and negotiations
- Coordinating property surveyors and valuation experts
- Managing market analysis through qualified research professionals
- Overseeing development of sustainable business models through specialist consultants
- Ensuring all strategic planning deliverables meet agreed timelines and quality standards

## 1.4 Grant and Financial Application Management - Coordination & Accountability

- Managing accredited grant consultants for identifying funding opportunities (including Mini PIA Turismo)
- Overseeing preparation and timely submission of all application documents
- Coordinating business plan development through qualified financial advisors
- Representing the Client in meetings with banks and financial institutions
- **\*\*Taking responsibility for ensuring all grant application deadlines are met\*\***
- Monitoring and reporting on application progress and outcomes

### **1.5 Project Implementation Oversight - Management Responsibility**

- **\*\*Selection and performance management of all technical teams, architects, engineers, and contractors\*\***
- **\*\*Accountability for project delivery according to agreed timelines and budget\*\***
- Coordinating all professionals to ensure adherence to the approved project plan
- Managing the permit application process through qualified professionals
- Providing regular progress reports with clear accountability for any delays or issues
- **\*\*Taking responsibility for corrective actions when deliverables are not met\*\***

### **1.6 Construction and Renovation Coordination - Site Management**

- **\*\*On-site representation to ensure contractor compliance with project specifications\*\***
- Managing relationships with all contractors and ensuring performance standards
- Coordinating resolution of technical issues through appropriate professionals
- **\*\*Accountability for project milestones and quality standards\*\***
- Overseeing health and safety compliance through qualified supervisors
- Regular site inspections and progress reporting to the Client

### **1.7 Project Completion and Handover - Final Delivery**

- **\*\*Ensuring all professionals complete their final deliverables on schedule\*\***
- Coordinating the obtainment of Certificate of Habitability through qualified technicians
- Managing final inspections with relevant authorities
- **\*\*Taking responsibility for complete project documentation delivery\*\***
- Ensuring smooth handover with all required certifications in place

## **ARTICLE 2 - DURATION**

### **2.1 Commencement**

This Agreement shall commence on the date of execution by both parties.

### **2.2 Term**

The Agreement shall remain in effect until the completion of the financed project, defined as:

- The official approval and disbursement of grant funding, OR
- The completion of the property purchase and any associated renovation works, OR

- As otherwise agreed in writing between the parties

## 2.3 Termination Notice

Any extension or early termination must be agreed in writing with at least thirty (30) days' prior notice.

# ARTICLE 3 - COMPENSATION AND PAYMENT TERMS

## 3.1 Fee Structure

The Client agrees to pay the Service Provider as follows:

### A. Initial Retainer Fee

- **\*\*First Payment\*\***: £5,000 (or €5,000 equivalent) due upon signing this Agreement

### B. Second Payment

- **\*\*Second Payment\*\***: £5,000 (or €5,000 equivalent) due upon signing of the preliminary purchase contract (Contratto Preliminare/Compromesso)

### C. Performance Bonus

- **\*\*Property Savings Bonus\*\***: 7.5% of any savings achieved on the chosen property's asking price
- Calculated as: (Initial Asking Price - Final Purchase Price) × 7.5%
- Payable within 30 days of property completion

### D. Success-Based Commission

A commission of 2.5% on the total project value submitted for financing (excluding unrelated consultancy or accessory costs), structured as follows:

1. 1% upon grant approval and/or bank co-financing confirmation
  - Less the Second Payment of £5,000/€5,000 if applicable to grant-funded projects
2. 1% at the commencement of construction/renovation works
  - Evidenced by official work commencement declaration
3. 0.5% upon issuance of the final Certificate of Habitability (SCA)
  - Or equivalent completion certification

## 3.2 Payment Terms

- All payments are due within thirty (30) days of invoice date
- Invoices will be issued in GBP or EUR as agreed
- VAT will be added at the applicable rate
- Late payments shall incur interest at 8% above the Bank of England base rate
- The Service Provider reserves the right to suspend services for overdue payments exceeding 60 days

## 3.3 Currency and Banking

- Payments to be made to the Service Provider's designated UK bank account
- Exchange rates, where applicable, shall be based on the rate on the invoice date

## **ARTICLE 4 - ADDITIONAL EXPENSES**

### **4.1 Reimbursable Expenses**

The following expenses shall be reimbursed by the Client upon presentation of valid receipts:

- Travel expenses for property viewings and meetings in Italy
- Accommodation costs for project-related visits
- Translation and certification costs
- Notary and legal fees
- Technical surveys and inspections
- Other project-specific costs pre-approved in writing

### **4.2 Expense Approval**

Any individual expense exceeding £500/€500 requires prior written approval from the Client.

## **ARTICLE 5 - MUTUAL OBLIGATIONS**

### **5.1 Service Provider's Obligations**

The Service Provider, as Project Coordinator and Client Representative, shall:

- **\*\*Take full responsibility for managing and delivering all third-party professional services on time and according to the agreed project plan\*\***
- **\*\*Be accountable for the performance and deliverables of all engaged professionals\*\***
- **\*\*Ensure all professionals meet their contractual obligations and quality standards\*\***
- Perform coordination services with professional skill and care
- Provide regular progress updates (minimum bi-weekly) with clear status on all deliverables
- Maintain appropriate professional indemnity insurance covering coordination services
- **\*\*Actively manage and supervise all professionals to ensure timely delivery\*\***
- **\*\*Take corrective action when any professional fails to meet agreed standards or timelines\*\***
- Act as the Client's representative in all project matters
- Maintain accurate records of all professional engagements and deliverables
- **\*\*Report immediately any risks to project timeline or quality\*\***

### **5.2 Client's Obligations**

The Client shall:

- Provide all required documentation and information in a timely manner
- Make decisions promptly when required for project progression
- Fulfill all payment obligations as per this Agreement

- Cooperate fully to ensure smooth project execution
- Provide Power of Attorney where necessary for Italian transactions
- Maintain adequate funds for property purchase and associated costs

## **ARTICLE 6 - INTELLECTUAL PROPERTY**

### **6.1 Ownership**

All project documentation, plans, and materials created specifically for the Client shall become the Client's property upon full payment of fees.

### **6.2 Service Provider's Materials**

The Service Provider retains all rights to its proprietary methods, templates, and general know-how.

## **ARTICLE 7 - LIABILITY AND INDEMNIFICATION**

### **7.1 Limitation of Liability**

The Service Provider's liability is limited to its role as Project Coordinator and Client Representative. While the Service Provider takes responsibility for managing professional deliverables, it shall not be liable for:

- Technical errors or omissions by third-party professionals (architects, engineers, lawyers, etc.)
- Professional malpractice by engaged specialists
- Delays caused by third parties beyond the Service Provider's reasonable control

The Service Provider's total liability for coordination and management services shall not exceed the total fees paid by the Client, except in cases of gross negligence or willful misconduct in performing coordination duties.

### **7.2 Performance Accountability**

The Service Provider accepts accountability for:

- Ensuring all professionals are properly qualified and selected
- Managing professionals to deliver according to agreed timelines
- Taking corrective action when performance issues arise
- Maintaining proper oversight and reporting

### **7.3 Indemnification**

Each party shall indemnify the other against claims arising from their own negligent acts or omissions.

### **7.4 Force Majeure**

Neither party shall be liable for delays or failures due to circumstances beyond their reasonable control, including but not limited to acts of God, war, pandemic, or changes in Italian law.

## **ARTICLE 8 - TERMINATION**

## **8.1 Termination Events**

This Agreement may be terminated:

- By mutual written consent
- By either party with 30 days' written notice for convenience
- Immediately for material breach after 14 days' written notice to cure
- Upon completion of the services

## **8.2 Consequences of Termination**

Upon termination:

- The Service Provider shall be paid for all services rendered to date
- All confidential information shall be returned
- Any ongoing obligations shall survive termination

# **ARTICLE 9 - DISPUTE RESOLUTION**

## **9.1 Governing Law**

This Agreement shall be governed by and construed in accordance with the laws of England and Wales.

## **9.2 Dispute Resolution Process**

1. Negotiation: The parties shall first attempt to resolve disputes through good faith negotiation
2. Mediation: If negotiation fails, disputes shall be submitted to mediation under CEDR rules
3. Arbitration: Unresolved disputes shall be finally settled by arbitration under LCIA rules
4. Jurisdiction: The courts of England and Wales shall have exclusive jurisdiction for any court proceedings

# **ARTICLE 10 - GENERAL PROVISIONS**

## **10.1 Entire Agreement**

This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements and understandings.

## **10.2 Amendments**

Any amendments must be in writing and signed by both parties.

## **10.3 Severability**

If any provision is found to be unenforceable, the remainder shall continue in full force and effect.

## **10.4 Assignment**

Neither party may assign this Agreement without the other party's written consent.

## **10.5 Notices**

All notices shall be in writing and sent to the addresses stated above or by email to designated addresses.

## 10.6 Relationship

Nothing in this Agreement creates a partnership, joint venture, or employment relationship.

## 10.7 Third Party Rights

This Agreement does not confer any rights on third parties under the Contracts (Rights of Third Parties) Act 1999.

## 10.8 Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original.

## EXECUTION

IN WITNESS WHEREOF, the parties have executed this Agreement on the date first written above.

### FOR THE SERVICE PROVIDER:

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1402 CELSIUS LTD

By: [Authorized Signatory Name]

Title: [Title]

Date: \_\_\_\_\_

### FOR THE CLIENT:

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[Client Name]

Date: \_\_\_\_\_

## SCHEDULE A - SPECIFIC PROJECT DETAILS

Property Location/Region: [To be specified]

Estimated Project Value: [To be specified]

Target Completion Date: [To be specified]

Specific Grant Programs: [To be specified]

## SCHEDULE B - CONTACT INFORMATION

Service Provider's Project Manager:

Name: [Name]

Email: [Email]

Phone: [Phone]

WhatsApp: [Number]

Client's Primary Contact:

Name: [Name]

Email: [Email]

Phone: [Phone]

## **SCHEDULE C - BANKING DETAILS**

Service Provider's Bank Account:

Bank Name: [Bank Name]

Account Name: 1402 Celsius Ltd

Sort Code: [XX-XX-XX]

Account Number: [XXXXXXXXX]

IBAN: [GBXX XXXX XXXX XXXX XXXX XX]

SWIFT/BIC: [XXXXXXXXXX]

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\*This Agreement has been prepared in accordance with the laws of England and Wales. The Client is advised to seek independent legal advice before signing.\*